

Court No. - 21

Case :- WRIT - C No. - 6444 of 2014

Petitioner :- M/S Sandeep Bobbins

Respondent :- State Of U.P. Thru Secy. And 4 Others

Counsel for Petitioner :- Sanjay Singh

Counsel for Respondent :- C.S.C., Nipendra Mishra

Hon'ble Amreshwar Pratap Sahi, J.

Hon'ble Vivek Kumar Birla, J.

Heard learned counsel for the petitioner and Sri Nipendra Mishra for respondents no.2 to 5.

The petitioner claims that he is not liable pay more than 15% supervision charges as per the U.P. Electricity Supply Code, 2005 and a further prayer made to quash all the intimations sent to the petitioner to that effect.

During the course of arguments, on enquiry, learned counsel for the petitioner has produced the copy of the letter dated 20.6.2013, which indicates that the installation has to be carried out in accordance with the norms indicated therein.

The dispute, therefore, is being raised that such norms cannot be enforced against the petitioner.

We have perused the copy of the instructions/code on which reliance has been placed and we do not find any provision granting concession to a consumer who has applied for a fresh connection to get any relief in relation to the supervision charges as prayed for in the present writ petition. In the absence of any such concession granted in the rules, the prayer made is misconceived and the petition is rejected.

Order Date :- 3.2.2014

Anand Sri./-